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October Group, Inc. et al., v. UW International Corp. et al.,

FINAL RULING - MOTIONS TO COMPEL FURTHER RESPONSES

The Rigas Defendants' Motions to Compel Further Responses to Requests for Production are GRANTED in part and DENIED in part as described below. Supplemental responses are due by August 20, 2026.

The requests for monetary sanctions are denied.

Introduction

On May 1, 2023, Plaintiffs The October Group, Inc. (dba October Med Supply Inc.), Warehouse Agency LLC (dba APACK Agency), and Allen Park filed the Complaint in this action.

On August 22, 2025, Defendants John Rigas and Mission n95 Holdings, LLC (the "Rigas Defendants") served their First Sets of Special Interrogatories and Requests for Production of Documents on each of the three Plaintiffs. Plaintiffs served unverified responses on September 23, 2025, responding with boilerplate objections and no substantive answers or agreements to produce documents.

On March 4, 2026, the Rigas Defendants filed three separate Motions to Compel Further Responses and Production of Documents — one directed at Plaintiff The October Group, Inc., one directed at Plaintiff Warehouse Agency LLC (dba APACK Agency), and one directed at Plaintiff Allen Park.

On April 15, 2026, the Court held an Informal Discovery Conference ("IDC") based on briefing submitted by the Rigas Defendants concerning the outstanding discovery disputes.

On June 11, 2026, Plaintiffs filed their Omnibus Opposition to the Rigas Defendants' three Motions to Compel Further Responses, filed concurrently with the Declaration of Sarah Malik.

On June 18, 2026, the Rigas Defendants filed their Reply in Support of the Motions to Compel Further Responses and Production of Documents.

Motions to Compel Further Responses to Requests for Production

As an initial matter, each of the three motions combines two separate motions into a single filing: a motion to compel further responses to special interrogatories and a motion to compel further responses to requests for production.

Multiple motions should not be combined into a single filing. (See Govt. Code, § 70617(a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing]; see also Weil & Brown, Civil Procedure Before Trial, [8:1140.1] at 8F-60 (The Rutter Group 2011) ["Motions to compel compliance with separate discovery requests ordinarily should be filed separately."].)

Therefore, the Court will only address the Rigas Defendants' Motions to Compel Further Responses to Requests for Production during this hearing.

Meet and Confer

The Declaration of Hajir Ardebili executed on March 4, 2026, sets forth the meet and confer efforts of counsel for the Defendants, and counsel's attempts to resolve the discovery dispute informally through written correspondence.

Legal Standard

“A party may demand that any other party produce . . . a document that is in the possession, custody, or control of the party on whom the demand is made.” (Code Civ. Proc., § 2031.010(b).) The demanding party may move for an order compelling further response to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310(a).) “The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand,” and “[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2031.310(b).)

Unlike with requests to compel further interrogatories, a moving party seeking to compel further responses for requests for production must show good cause along with satisfaction of the meet and confer requirement. (CCP§ 2031.310(b).)

To prevail, a party moving for an order compelling further responses to a document production demand must first offer specific facts demonstrating “good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) This burden “is met simply by a fact-specific showing of relevance.” (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448.) If “good cause” is shown by the moving party, the burden shifts to the responding party to justify any objections made to document disclosure. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.)

“The party to whom a demand for inspection, copying, or testing, or sampling has been directed shall respond separately to each item or category of item by any of the following: (1) A statement that the party will comply with the particular demand... A statement that the party ... will comply with the particular demand shall state that the production will be allowed either in whole or in part, and that all documents or things in the demanded category that are in possession, custody, or control of that party and to which no objection is being made will be included in the production. (2) A representation that the party lacks the ability to comply with the demand... A representation of inability to comply with the particular demand ... shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in possession, custody, or control of the responding party. The statement shall set for the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of items. (3) An objection to the particular demand... If only part of an item of category of item in a demand... is objectionable, the response shall contain a statement of compliance or a representation of inability to comply with respect to the remainder of that item or category. If the responding party objects to the demand... the response shall do both of the following: [a] Identify with particularity any document or tangible thing... falling within any category of item in the demand to which an objection is being made, [b] Set forth clearly the extent of, and the specific ground for the objection.... If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (California Code of Civil Procedure §§ 2031.210, 2031.220, 2031.230, and 2031.240)

Good Cause

The Rigas Defendants contend there is good cause for the Requests because the documents sought go to the heart of this case: who performed the work on the California Order, who was paid, whether Plaintiffs are seeking to collect twice for the same goods and services, and why Plaintiffs changed their theory of recovery more than a year and a half after filing suit. They further contend the documents bear on their statute of limitations, offset, and unjust enrichment defenses.

Defendants have established good cause for the Requests.

Request for Production No. 1 (October Group, APACK, and Park)

RFP No. 1 seeks all documents identified in response to the Rigas Defendants' First Sets of Special Interrogatories. The Request is relevant, and Plaintiffs assert no merited objection.

Further response and production is ordered. To the extent Plaintiffs identify any documents in their responses to the special interrogatories, Plaintiffs shall produce all such responsive, non-privileged documents, with a privilege log for any documents withheld on the basis of privilege. Communications with counsel of record in this action are not compelled for production, or identifying in a privilege log.

AOGrand-Related Documents (APACK RFP Nos. 8 and 10; Park RFP Nos. 11, 12, and 13)

These Requests seek agreements between the Park Parties and AOGrand, documents evidencing payments from AOGrand to the Park Parties, and related communications. AOGrand produced the majority of the sanitizer for the California Order, and the documents bear on whether Plaintiffs received reimbursements, compensation, or other benefits that may offset their claims.

Plaintiffs contend this dispute is moot because they produced the AOGrand contract, served supplemental responses, and have agreed to supplement these specific Requests. An agreement to supplement does not moot the Requests; it is a concession that the original responses were deficient. The relevance of the documents is not contested, and Plaintiffs offer no merited objection.

Further response and production is ordered, including a privilege log for any documents withheld on the basis of privilege. Communications with counsel of record in this action are not compelled for production, or identifying in a privilege log.

Inter-Plaintiff Agreements (APACK RFP No. 14; Park RFP No. 17; October Group RFP No. 17)

These Requests seek the proposed agreement reflected in APACK's production (APACK01199) and agreements between October Group and the Park Parties.

Plaintiffs object that inter-plaintiff allocation agreements are irrelevant collateral matters, comparing them to litigation funding agreements that courts often decline to compel.

The objection is without merit. The litigation funding authorities Plaintiffs cite are non-binding federal decisions concerning agreements with outside third-party financiers having no role in the underlying events. The Requests here seek operative agreements among the parties themselves bearing on Plaintiffs' respective roles, compensation arrangements, and right to recover. Such agreements are relevant to the merits and to the bias and interest of Plaintiffs and their principals, which is a proper subject of discovery. (Evid. Code, § 780(f).) That the change in theory was explored at deposition does not excuse production of the underlying documents.

Further response and production is ordered, including a privilege log for any documents withheld on the basis of privilege. Communications with counsel of record in this action are not compelled for production, or identifying in a privilege log.

Lawsuit-Related Communications (APACK RFP No. 25; Park RFP No. 28; October Group RFP Nos. 4 and 25)

These Requests seek communications among Plaintiffs and their principals relating to the lawsuit and, as to October Group RFP No. 4, communications regarding the lawsuit between Plaintiffs' principals and identified third-party witnesses.

Plaintiffs assert a blanket objection that these communications are protected by the attorney-client privilege and work product doctrine and that the stated purpose is pretextual.

The objection is without merit. Communications among co-clients and with third-party witnesses are not categorically privileged, and a blanket privilege objection does not justify refusing to answer or produce non-privileged material. As the party asserting privilege, Plaintiffs bear the burden of establishing the preliminary facts supporting each claim, and the proper remedy is substantive responses, production of non-privileged communications, and a privilege log identifying anything withheld. (See Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1125-1126.)

Further response and production is ordered, including a privilege log for any documents withheld on the basis of privilege or work product. Communications with counsel of record in this action are not compelled for production, or identifying in a privilege log. Communications with counsel of record in this action are not compelled for production, or identifying in a privilege log.

Bank and Financial Records (APACK RFP Nos. 28, 29, and 30; Park RFP Nos. 31, 32, and 33)

These Requests seek Park's and APACK's bank statements and deposit, withdrawal, and transfer records, and related documents, from May 1, 2020 to the present.

Plaintiffs object that the Requests are overbroad, seek irrelevant third-party transactions, are disproportionate, invade privacy, and are moot in part because Plaintiffs produced tracing documents for the $1.6 million transfer. The objections have partial merit. As written, the Requests are overbroad and implicate privacy interests in financial records.

The Rigas Defendants have established the relevance of transaction-level records to the statute of limitations, offsets, unjust enrichment, alternative compensation, claimed expenditures, and credibility, and have offered a narrowed, transaction-focused production. California law favors tailoring discovery rather than outright denial, and privacy concerns in financial records are managed through a protective order rather than by denying relevant discovery. (Williams v. Superior Court (2017) 3 Cal.5th 531, 552-557; Valley Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652, 657-658.) Plaintiffs have not offered competent evidence quantifying any burden. The partial production of a single Chase statement tracing the $1.6 million transfer does not establish who ultimately received the funds and does not moot the Requests. The third-party transactions are relevant because Plaintiffs identified those individuals as team members who performed work on the

California Order, and the mask deal is relevant because Plaintiffs invoked it in opposing summary judgment.

The motions are granted in part as to the bank and financial records. Park and APACK shall produce documents sufficient to identify relevant accounts and transaction-level records (monthly statements and transaction histories, including wire and ACH detail where available) limited to transactions involving the California Order, AOGrand, the $1.6 million transfer, the separate bottles-and-caps transaction, and the mask deal, including transactions with the parties identified in the moving papers, for the relevant period, subject to the protective order.

The motions are otherwise denied as to these Requests to the extent they seek unrestricted bank records.

Monetary Sanctions

Because the Court grants the motions in part and denies them in part, and because the parties substantially narrowed their disputes through the Court-directed Informal Discovery Conference process and Plaintiffs' opposition was substantially justified in part, the Court finds that the imposition of sanctions would be unjust.

The requests for monetary sanctions are denied.

Conclusion

The Rigas Defendants' Motions to Compel Further Responses to Requests for Production are GRANTED in part and DENIED in part as described above. Supplemental responses are due within 45 days of this order.

Moving party to give notice.

FINAL RULING - DEFENDANTS MISSION N95 HOLDINGS LLC AND JOHN RIGAS'S MOTIONS TO QUASH DEPOSITION SUBPOENAS PRODUCTION OF BUSINESS RECORDS TO (1) BANK OF AMERICA AND (2) J.P. MORGAN CHASE BANK, N.A.

FINAL RULING

The Motions to Quash are DENIED. Instead, the Court hereby MODIFIES the Bank Subpoenas as follows:

The Bank of America subpoena is limited to Request Nos. 4 and 5 (checking and savings account records), and the Chase subpoenas are limited to Request Nos. 7 through 10 (checking and savings account records).The modified requests are further limited to records reflecting transactions relating to the California Order and the related matters identified herein, namely the $1.6 million loan, payments and transfers connected to the California Order, the separate mask transaction, payments involving the sanitizer suppliers (including IRIS and AOGrand), and Plaintiffs' receipts and expenditures relating to the work they allege they performed.

Given the limitations imposed on the release of information in today's ruling, THE BANKS ARE TO PRODUCE THE RECORDS DIRECTLY TO PLAINTIFFS' COUNSEL, NOT THE PARTY ISSUING THE SUBPOENA, WITHIN 20 DAYS FROM TODAY'S ORDER.

The parties have agreed to confer on procedures to produce records such that production is limited to the information set forth in this order. The procedure will include Plaintiffs reviewing and redacting information that was not compelled by this

Court order, and producing a privilege log identifying the category of excluded information under which any redaction falls. The parties should complete production of redacted records by September 15, 2026.

Introduction

On May 1, 2023, Plaintiffs filed the instant Complaint which asserts claims for breach of oral contract, breach of the implied covenant of good faith and fair dealing, violation of Business and Professions Code section 17200, promissory estoppel, and quantum meruit.

In August/September 2025, Defendants Mission n95 Holdings, LLC and John Rigas served deposition subpoenas for production of business records on non-parties Bank of America, N.A. and J.P. Morgan Chase Bank, N.A.

On September 19, 2025, Plaintiffs filed the two instant motions, one directed to the BOA subpoena and one directed to the two Chase subpoenas.

On February 27, 2026, and March 2, 2026, Defendants filed their oppositions.

On March 5 and March 6, 2026, Plaintiffs filed their replies.

On March 12, 2026, the Court continued the matter to permit Parties to participate in an IDC. The Informal Discovery Conference took place on April 15, 2026.

The parties filed supplemental briefs on June 18, 2026.

On July 2, 2026, the Court heard oral arguments and modified its tentative ruling, and now enters this final ruling.

Legal Standard

CCP section 1987.1 states that “[i]f a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court’s own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders.” (Code Civ. Proc., § 1987.1(a).) “In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Id.) Subdivision (b) provides that a party may make a motion pursuant to subdivision (a). (Id., § 1987.1(b).)

California Rules of Court, rule 3.1345 provides that “[a]ny motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion . . . To compel or to quash the production of documents or tangible things at a deposition[.]” (Cal. Rules of Court, rule 3.1345(a)(5).)

Discussion

As an initial matter, the Court agrees that Code of Civil Procedure section 1985.3 does not apply here, where the subpoena has been served on a corporate entity seeking the corporation’s own business records. Code of Civil Procedure section

1985.3 applies to subpoenas seeking "personal records" of a "consumer," defined as "any individual . . . which has transacted business with, or has used the services of, the witness." (Code Civ. Proc., § 1985.3(a)(2).) Business records of a corporate entity are not "personal records" within the meaning of section 1985.3.

Scope of the Requests/Relevance

The Court notes that the only remaining Requests at issue are the BOA Request Nos. 4 and 5 and Chase Request Nos. 7 through 10. The Rigas Defendants have agreed to withdraw all requests except those seeking checking and savings account records. They have also proposed to confine production to transactions connected to this case: the disputed $1.6 million loan, the California Order, a separate mask transaction, payments involving the sanitizer suppliers (including IRIS and AOGrand), and Plaintiffs' receipts and expenditures relating to the work they allege they performed. As narrowed to those account records and transactions, the requests identify discrete categories of standard banking records that the banks can readily identify and produce.

For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement. (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) Admissibility is not the test, and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. (Id.) These rules are applied liberally in favor of discovery and, contrary to popular belief, fishing expeditions are permissible in some cases. (Id.)

Because the Bank Subpoenas seek constitutionally protected financial information, the party seeking production must show that the records are directly relevant to a claim or defense. (Davis v. Superior Court (1992) 7 Cal.App.4th 1008, 1017.) For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement, and, unless privileged, is discoverable if it might reasonably lead to admissible evidence. (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.)

The checking and savings account records, confined to transactions related to the California Order, are directly relevant and reasonably calculated to lead to admissible evidence. The records tracing the disputed $1.6 million loan bear on its receipt and disposition. The records of California Order payments, Plaintiffs' receipts and expenditures, and the timing of payment on the separate mask transaction bear on whether Plaintiffs were compensated through other channels, the value of their claimed services under the quantum meruit claim, and the Rigas Defendants’ offset, unjust enrichment, and statute of limitations defenses.

Privacy/Trade Secrets Objections

As to Plaintiffs’ privacy objections, the right of privacy contained in the¿California Constitution (Art. 1, § 1) is limited to “people,” meaning natural persons: “[T]he constitutional provision simply does not apply to corporations.” (Roberts v. Gulf Oil Corp.¿(1983) 147 CA3d 770, 791, 796-797, 195 CR 393, 406, 411-412; see¿SCC Acquisitions, Inc. v. Sup.Ct. (Western Albuquerque Land Holdings, LLC)¿(2015) 243 CA4th 741, 755-756, 196 CR3d 533, 544-545 – “While corporations do have a right to privacy, it is not a constitutional right”])

Assuming a business entity has a right of privacy, courts must determine whether it is outweighed by the relevance of the information sought to the subject matter in the pending action. Business entities have reduced privacy expectations in their commercial dealings compared to individuals' personal information. (Hecht, Solberg, Goldberg & Bagley LLP v. Superior Court (2006) 137 Cal.App.4th 579, 595.)

The Court must “balance the public need against the weight of the privacy right” and only serious invasions of privacy will bar discovery. (Crab Addison, Inc. v. Superior Court (2008) 169 Cal.App.4th 958, 966.) There is not an egregious invasion of privacy every time there is a request for private information and courts must “place the burden on the party asserting a privacy interest to establish its extent and seriousness of the prospective invasion.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 557.) A showing of relevancy may be enough to cause the court to balance the compelling public need for discovery against the fundamental right of privacy.¿ (Life Technologies Corp. v. Superior Court (2011) 197 Cal.App.4th 640, 652)

Here, as discussed above, the Subpoenas seek documents that are relevant and reasonably calculated to lead to the discovery of admissible evidence. Plaintiff Park, as an individual, has a constitutional right of privacy in his confidential financial affairs. The business-entity Plaintiffs, APACK and October Group, have at most a reduced privacy interest in their commercial financial dealings. (Hecht, Solberg, Goldberg & Bagley LLP v. Superior Court (2006) 137 Cal.App.4th 579, 595.) Balancing the relevance of the requested documents against the privacy interest here, the court finds that the disclosure of the narrowed categories of information requested is warranted under the circumstances presented.

The Motions to Quash are DENIED.

Conclusion

The Motions to Quash are DENIED. Instead, the Court hereby MODIFIES the Bank Subpoenas as follows:

The BOA subpoena is limited to Request Nos. 4 and 5 (checking and savings account records), and the Chase subpoenas are limited to Request Nos. 7 through 10 (checking and savings account records). All other requests are stricken.

The modified requests are further limited to records reflecting transactions relating to the California Order and the related matters identified herein, namely the $1.6 million loan, payments and transfers connected to the California Order, the separate mask transaction, payments involving the sanitizer suppliers (including IRIS and AOGrand), and Plaintiffs' receipts and expenditures relating to the work they allege they performed.

Given the limitations imposed on the release of information in today's ruling, THE BANKS ARE TO PRODUCE THE RECORDS DIRECTLY TO PLAINTIFFS' COUNSEL, NOT THE PARTY ISSUING THE SUBPOENA, WITHIN 20 DAYS FROM TODAY'S ORDER.

The parties have agreed to confer on procedures to produce records such that production is limited to the information set forth in this order. The procedure will include Plaintiffs reviewing and redacting information that was not compelled by this Court order, and producing a privilege log identifying the category of excluded information under which any redaction falls. The parties should complete production of redacted records by September 15, 2026.

Moving party to give notice.